

Court No. - 3

Case :- WRIT - C No. - 56821 of 2011

Petitioner :- Birendra Kumar Arya

Respondent :- Paschimanchal Vidyut Vitdran Nigam Ltd. And Another

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Pankaj Kumar Shukla

Hon'ble Amitava Lala,J.

Hon'ble Vinay Kumar Mathur,J.

Even after repeated calls nobody appeared on behalf of the petitioner. Mr. Pankaj Kumar Shukla, learned counsel for the respondent is present.

The electric connection of the petitioner has been disconnected by the authority on the ground of using electricity for agricultural purposes and for running cold storage. The order which has been passed by the authority concerned was under challenge before the Writ Court in Writ C No. 40167 of 2011 (Birendra Kumar Arya Vs. Paschimanchal Vidyut Vitran Nigam Ltd. and Another) which was disposed of vide order dated 26.7.2011 when the respondent-authority was directed to consider the cause of the petitioner and pass appropriate order and ultimately the order was passed on 17.8.2011. Being aggrieved by the order dated 17.8.2011, the writ petition has been filed by saying that the order and observation of the Electricity Department is not only illegal but dehors the provisions contained in Electricity Supply Code, 2005 read with the provisions of U.P. Electricity Act, 2003.

Therefore, we are not in a position to pass any order against the stand taken by the Electricity Department in this regard.

Hence, we dispose of the writ petition at the stage of admission, however, without imposing any cost.

Passing of this order will in no way affect the right of the petitioner if he applies before the Consumer Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005.

Order Date :- 28.9.2011

Sandeep